

**BEFORE THE
FEDERAL MARITIME COMMISSION**

**OCEAN COMMON CARRIER AND
MARINE TERMINAL OPERATOR
AGREEMENTS SUBJECT TO
THE SHIPPING ACT OF 1984**

DOCKET NO. 03-15

Comments of P&O Nedlloyd Limited¹

P&O Nedlloyd Limited, ("P&O Nedlloyd") an ocean common carrier operating, *inter alia*, in the foreign commerce of the United States, submits the following comments with respect to the Notice of Proposed Rulemaking, 68 *Fed. Reg.* 67509 (December 2, 2003).

P&O Nedlloyd participates in over fifty agreements that are currently filed and effective under the Shipping Act of 1984, as amended. Every P&O Nedlloyd service to/from the United States is pursuant to a filed and effective agreement with one or more other ocean common carriers to share space on vessels, exchange slots or charter space. These agreements range in size and scope from the Grand Alliance, a global consortium, to the Pacific Gulf Express Agreement in which P&O Nedlloyd and CMA CGM share space on one another's vessels to provide service between the Far East and Houston, TX. P&O Nedlloyd is also a party to non-exclusive transshipment agreements in which it serves as a Connecting Carrier and either the Origin Carrier or the Destination Carrier, but not the Publishing Carrier.

P&O Nedlloyd's comments are directed at two issues: (a) the issue of minute filing requirements when two members of an agreement have a discussion and reach an agreement or when three or members have a discussion, and (b) the proposed changes to the exemption for non-exclusive transshipment agreements.

¹ P&O Nedlloyd Limited is also a participant in the comments filed by Ocean Common Carriers and Agreements. If the P&O Nedlloyd comments herein are inconsistent with the Ocean Common Carrier and Agreements comments, (and we do not believe there are any inconsistencies) these comments represent the P&O Nedlloyd position.

The Minute Filing Requirements²

Most voluntary and non-binding discussion agreements authorize any two or more members to have discussions on subjects within the scope of the agreement. The Commission proposes that when such discussions take place among three or more members, minutes of such meeting are required to be filed. The Commission also proposes that if two members have a discussion and reach an agreement, albeit voluntary and non-binding, then they must file minutes with the Commission.

While P&O Nedlloyd has no objection to the requirement of the filing of minutes in such circumstances, it is concerned that the regulations are unclear as to (a) what constitutes a "meeting," (b) who has the obligation to file the minutes and (c) who is liable for any violation of these minute filing requirements? Candidly, P&O Nedlloyd has no desire to bear the liability for a failure by other members of an agreement to meet these new requirements.

What constitutes a meeting? If three "employees" of members of an agreement discuss market conditions in the trade covered by the agreement, informally, at a Propeller Club luncheon, is that a meeting that must be minuted? Does it matter whether the persons who are having the discussion have decision-making authority? Should the requirement be applied only when the meetings are among the carriers' designated representatives to the agreement as distinct, for example, from three carrier-employed sales people having such a discussion? Is there some level of intent involved in determining whether a meeting that needs to be minuted took place; *i.e.*, do the parties need to specifically understand that the discussion is pursuant to and under agreement authority as compared to an informal discussion about trade conditions? The issues raised by these questions are complex and difficult to resolve. Candidly, we don't know the answer to these questions, but we do suggest these and similar questions need to be answered in order for the regulation to be meaningful, for those affected to adhere to it, and for it to be enforceable. We suggest that the Commission should make clear, at minimum, that random discussions that are outside the context of an agreement (such as the Propeller Club or sales representative example), especially when the representatives do not have responsibilities relating to the agreement, should not be swept up by these new minuting requirements.

Who has the obligation to file the minutes? Given the nature of the mechanics of minute filing requirements in the regulations, *e.g.*, consecutive numbering, it is our view that the minutes of such meetings must be given to an agreement secretariat or administrator for filing so that they can be appropriately numbered and filed in accordance with the proposed FMC regulations. In short, we think that the processing should go through the same process as minutes of meetings of the full agreement. We also suggest that the Commission might

² We are also authorized to state that Tropical Shipping & Construction Co., Ltd., an ocean common carrier, joins in these comments as they relate to the filing of minutes of meetings.

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provide some additional time as to when these minutes are to be filed, *i.e.*, if the time to file minutes in 15 days or 21 days, minutes from meetings of two or three members should be permitted to be filed within 30 days because the agreement administrator's are not necessarily involved in such two or three part meetings or discussions.

Who is liable for non-filing or late filing? P&O Nedlloyd believes that the Commission should make it clear that failure to file minutes of two or three members meetings or discussions should be the liability of the carriers who participated in the meeting and that liability should not extend to other members of the agreement.

For the reasons expressed, P&O Nedlloyd respectfully requests that the Commission resolve the issues that are raised concerning the minute filing requirements for two or three party meetings or discussions.

The Non-Exclusive Transshipment Agreement Exemption

P&O Nedlloyd believes that the proposed changes to the non-exclusive transshipment agreement regulation are based on unsupportable premises, are ill-conceived and will result in eliminating transshipment agreements and lead to potential reductions in services to shippers. Instead of achieving visibility of cargo movements, the proposed changes will do just the opposite. Instead of encouraging the movement of cargo to and from ports and places that do not, because of small cargo volumes and/or location, have direct ship services, or which have minimal direct services, the proposed regulations will discourage such movements.

The Premise That the Transshipment Exemption Regulation Needs Clarification is Unsupported and Unsupportable.

The regulatory history of the non-exclusive transshipment agreement exemption is important to understand. The exemption for non-exclusive transshipment agreements between ocean common carriers has been in existence since it was adopted by the Commission in the late 1960's under the Shipping Act, 1916. The decision to exempt such agreements from filing resulted from two 1966 decisions concerning transshipment arrangements involving carriers who had no vessels that actually called at U.S. ports in any service. The Commission recently discussed these cases in Docket 99-10, *Ocean Common Carriers Subject to the Shipping Act of 1984*, 28 S.R.R. 1414, (FMC 2000) ("*Ocean Common Carriers*"), noting that

"In the first case, the Commission found carriers moving cargo from Indonesian outports to the U.S. under a through bill of lading who transshipped the cargo at a base port to be common carriers by water, and stated:

Where there exists a unitary contract of affreightment such as a through bill of lading by which two or more carriers or conferences of carriers hold themselves out to transport cargo from a specified

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foreign port to a point in the United States with transshipment at one or more intermediate points from one carrier to another, each of the carriers so involved is "engaged in" transporting cargo by water from a foreign country to the United States.

10 F.M.C. at 191. The Commission reached a similar conclusion in the second Transshipment case, 10 F.M.C. 201 (1966), where carriers moving cargo from Thailand to Singapore were also held to be subject to the 1916 Act."

Given the agreement filing and approval provisions of section 15 of the Shipping Act, 1916, the Commission decided to exempt those transshipment agreements that were non-exclusive and adopted regulations for such exemption. The Commission's regulations in effect just prior to enactment of the Shipping Act of 1984, defined a "non-exclusive transshipment agreement" as follows:

"A nonexclusive transshipment agreement for purposes of this Part is an agreement between a carrier serving a port of origin and a carrier serving a port of destination to establish a through route between such ports via an intermediate port at which the cargo is transferred which agreement does not prohibit either carrier from entering into similar agreements with other carriers." 46 CFR §524.2(a)

It is noteworthy that the provisions of the exemption under the 1916 Act did not contain the words "by direct vessel call" in defining transshipment agreements.

After the enactment of the Shipping Act of 1984, the Commission, in Docket 84-26, *Rules Governing Agreements by Ocean Common Carriers and Other Persons Subject to the Shipping Act of 1984*, 22 SRR 927 (1984) enacted Interim Regulations which also served as proposed rules for which comments were invited, that, *inter alia*, continued the exemption for non-exclusive transshipment agreements. The Commission made it clear that this was a continuation of the prior exemption, with certain modifications. The Commission stated:

"This section continues, in a modified form, the present exemption for non-exclusive transshipment agreements contained in 46 CFR §524. The modifications refine the description of the type of transshipment which is exempt. This will permit inclusion of matters in the agreement which are more fully representative of the usual actual arrangement of the parties for the conduct of commercial transshipment activities. The modifications permit inclusion in the arrangements of any specifics of equipment interchange, service rationalization and agency arrangements as may be necessary to complete the contemplated carriage. Additionally, these agreements will now be exempt from filing, but only if limited in scope to the provisions set forth. The exemption from filing eliminates the need to continue the requirements of a specified form of agreement." 22 SRR at 932-38.

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In the Interim Regulation adopted in 1984, the Commission in defining the term “transshipment agreement” inserted the words “by direct vessel call.” The Commission did not discuss the addition of these words in the Interim Rule and gave no specific notice that it was adding the words for any specific purpose or with any specific meaning or intention. In short, who added the words “by direct vessel call” and why they were added or what they were intended to mean, was not discussed or explained.

The Commission issued its Final Rules in Docket 84-26 on November 14, 1984, 22 SRR 1453. The Commission did not indicate that it received any comments about the Interim Rule as it related to the exemption for transshipment agreements. The Commission very specifically noted that

“Section 572.310 [redesignated §572.306] continues the exemption under the 1916 Act for non-exclusive transshipment agreements pursuant to section 16 of the 1984 Act.”

Significantly, as with the Interim Rule, there was not a single reference to the addition of the words “by direct vessel call” in the definition of non-exclusive transshipment agreement. Moreover, since adoption of this regulation the words “by direct vessel call” have not been discussed in any Commission decision or rulemaking.

The first inkling to the public that the Commission had some specific intention in adding the words “by direct vessel call” is in the discussion in this rulemaking proceeding when the Commission notes:

“The Commission has traditionally viewed transshipment agreements as agreements under which two ocean common carriers that both operate vessels provide a through service between the United States and a foreign port.” (Emphasis added.) 68 *Fed. Reg.* 67520-21.

The FMC provides no citations to support this so-called “traditional” view” of transshipment agreements. In fact, the current regulation doesn’t say anything about the parties both operating vessels, it merely says “by direct vessel call” not “by direct vessel call of vessels operated by the parties.” In sum, the Commission’s premise that somehow things have changed since 1984 that require clarification is just not supportable factually or legally.

The Rulemaking in Docket 99-10 is Fully Consistent with the Existing Transshipment Exemption Regulation and Current Carrier Practices

In 2000, in *Ocean Common Carriers*, 28 S.R.R. 1414, (FMC 2000) the Commission decided that “[I]f a common carrier is an ocean common carrier in one U.S. trade, it can act as ocean common carrier in all U.S. trades.” (Emphasis added.) 28 SRR at 1418. The clear meaning of this decision is that an ocean common carrier who operates vessels in one U.S. trade in which it makes direct vessel calls at a U.S. port, may act as an ocean common carrier in U.S. trades where it does not operate its own vessels. This ruling clearly was in

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recognition of the fact that ocean common carriers acquired space on vessels by a variety of ways including alliance agreements, vessel sharing agreements, space charters and transshipment agreements. Certainly, the Commission did not in its ruling in Docket 99-10 exclude transshipment agreements from the ways that an ocean common carrier in one trade may act as an ocean common carrier in all U.S. trades.

How Transshipment Agreements Work

In every transshipment agreement there are two ocean common carrier³ parties (Carrier A and Carrier B) who may operate in either of the following combinations:

Scenario 1:

Carrier A: Publishing Carrier and Origin Carrier

Carrier B: Connecting Carrier and Destination Carrier

Scenario 2:

Carrier A: Publishing Carrier and Destination Carrier

Carrier B: Connecting Carrier and Origin Carrier

It is noteworthy that the existing transshipment regulations do not require the Carrier who is the Publishing Carrier to be the Origin Carrier nor does it require the Connecting Carrier to be the Destination Carrier.⁴ Either scenario is possible under the regulations. It also does not matter whether the transshipment agreement is in the export trade of the U.S. or the import trade of the U.S.

Under Scenario 1, Carrier A is the Publishing Carrier and the Origin Carrier. Under this scenario, Carrier A is the carrier issuing a through bill of lading to the shipper and publishing the tariff rate or entering into a service contract with the shipper. Carrier A is also responsible for the carriage of the container from the port or point of origin to the transshipment port. Carrier B is the Connecting Carrier and Destination Carrier that carries the cargo from the transshipment port to the destination port.

Under Scenario 2, Carrier A is the Publishing Carrier and the Destination Carrier. Carrier A is the carrier issuing a through bill of lading to the shipper and publishing the tariff rate or entering into a service contract with the shipper. Carrier A is also responsible for the carriage of the container from the transshipment port to the destination port. Carrier B is the Connecting Carrier

³ It must be understood that both carriers are "ocean common carriers" as defined under the Shipping Act of 1984 and the Commission's rulemaking in Docket 99-10.

⁴ As will be discussed below, the Commission's proposed rule would appear to require the Publishing Carrier to be the Origin Carrier in the export trade and it would appear to require the Publishing Carrier to be the Destination Carrier in the import trade.

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and the Origin Carrier. It is responsible for carrying the cargo from the origin port to the transshipment port.

Two Examples of Non-Exclusive Transshipment Agreements to which PONL is a Party as a Connecting Carrier

P&O Nedlloyd – FOML Non-Exclusive Transshipment Agreement

In 2001, P&O Nedlloyd entered into a non-exclusive transshipment agreement with Fesco Ocean Management Limited ("FOML") in which FOML is the Publishing Carrier that holds itself out under a published tariff to provide service from points and ports in the United States to ports in the Russian Far East. The FOML tariff has a rule that, in accordance with FMC regulations, specifically notes that P&O Nedlloyd is providing transshipment service. In this case, P&O Nedlloyd is the Origin Carrier and Connecting Carrier, carrying FOML containers, for example, from Seattle to Busan. FOML is, as noted, the Publishing Carrier and the Destination Carrier and is responsible for the carriage from Busan to Russia.

In this example, P&O Nedlloyd provides FOML space from P&O Nedlloyd's space allocation under the Grand Alliance. The Grand Alliance vessels serve Seattle and Busan "by direct vessel call." FOML, for its part, takes the cargo "by direct vessel call" from Busan to ports in the Russian Far East. FOML has a space charter agreement with its parent company, Far Eastern Shipping Company ("FESCO") which is not an ocean common carrier subject to FMC jurisdiction. FESCO, in turn, has a vessel sharing arrangement between Busan and ports in the Russian Far East with Hyundai Merchant Marine. Thus, FOML's service from the transshipment port, Busan, to the Destination Ports in Russia will be pursuant to a space charter agreement on space provided to FOML by FESCO on either FESCO or Hyundai vessels.

In sum, P&O Nedlloyd provides its service as a Origin Carrier on space allocated to it under the Grand Alliance Agreement on vessels of any of the four members, depending on how the Grand Alliance deploys its vessels, and FOML provides its service as Destination Carrier on space allocated to it under a space charter agreement with its parent, FESCO.

The P&O Nedlloyd – FOML transshipment arrangement is visible to the Commission and the shipping public because FOML's tariff, as required by the FMC's regulation, contains a provision describing the fact that transshipment occurs via P&O Nedlloyd.

P&O Nedlloyd - HSDG Non-Exclusive Transshipment Agreement

In 2003, P&O Nedlloyd entered into a non-exclusive transshipment agreement with Hamburg-Sudamerikanische Dampfschiffahrtsgesellschaft KG ("HSDG") in which HSDG is the Publishing Carrier that holds itself out to provide service between points and ports in Australia/New Zealand and the port of Houston, TX. In the import trade, P&O Nedlloyd is the Destination Carrier and Connecting Carrier, carrying containers from Panama to Houston, and HSDG

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is, as noted, the Publishing Carrier and the Origin Carrier, carrying cargo from Australia/New Zealand to Panama. In the export trade, P&O Nedlloyd is the Origin Carrier and the Connecting Carrier, carrying cargo from Houston to Panama and HSDG is the Destination Carrier and Publishing Carrier, carrying the cargo from Panama to Australia/New Zealand.

In this arrangement P&O Nedlloyd provides HSDG space through space allocated to P&O Nedlloyd under the Pacific Gulf Express Agreement (FMC Agreement 11847) which operates direct vessel service between the Far East and Houston, TX and which calls at Panama en route. The cargo carried from Panama to Houston is in HSDG containers. HSDG, for its part, carries the cargo "by direct vessel call" from Australia/New Zealand to Panama on space allocated to HSDG under an agreement it has with P&O Nedlloyd and Contship. While this agreement, which, for FMC regulatory purposes, covers service between Australia/New Zealand and the U.S. East Coast, and is filed with the FMC (FMC Agreement 11825), the movement between Australia/New Zealand and Panama is outside the jurisdiction of the FMC.

Since the P&O Nedlloyd – HSDG Non-Exclusive Transshipment Agreement operates in both the import and export trades, P&O Nedlloyd in the Connecting Carrier/Origin Carrier and HSDG is the Publishing Carrier/Destination Carrier in the export trade. In the export trade, the P&O Nedlloyd – HSDG arrangement has virtually the same elements as the P&O Nedlloyd - FOML arrangement.

The common thread is that the services are visible to the shipping public and they are beneficial to shippers and competition because they provide meaningful and lawful alternatives to get cargo from origins and/or destinations that have no direct ship services to or from the United States.

The Proposed Rule is Unworkable, Inconsistent with Other Regulations and will not Achieve its Stated Purpose

The Commission proposal revision in the definition of "transshipment agreement" in §535.104(jj) would directly affect both of the P&O Nedlloyd connecting carrier agreements described above. The Commission's proposal would insert in the current definition, found at §535.104(ii), the following new language:

"and the publishing carrier performs the transportation on one leg of the through transportation on its own vessel or on a vessel on which it has rights to space under a filed and effective agreement."

There are several aspects of this change that are of concern. First, the Commission appears to be departing from its decision in Docket 99-10 where the Commission said "[I]f a common carrier is an ocean common carrier in one U.S. trade, it can act as ocean common carrier in all U.S. trades." (Emphasis added.) 28 SRR at 1418. By the proposed rule, the Commission is clearly saying that in transshipment services you are only an ocean common carrier in the leg between the transshipment port and the foreign origin or destination port if you operate your own vessel. It seems somewhat strange, to say the least, that the

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Commission would take the view that one might be able to operate from U.S. ports as an ocean common carrier without one's own vessels but that one cannot operate between a transshipment port and a foreign port unless one uses its own vessel.

Second, the Commission, in a departure from the past, for the first time will require the Publishing Carrier, when it does not "perform the transportation on one leg of the through transportation on its own vessel" to specifically be the Origin Carrier in the export trade of the United States or to specifically be the Destination Carrier when operating in the import trade of the United States. That this is the result is clear because the phrase "rights to space under a filed and effective agreement" can only mean an agreement involving ocean common carriers subject to the Shipping Act, which must mean the U.S./transshipment port leg of the through carriage.

Third, the Commission is saying that the term "by direct vessel call" may be satisfied by a Publishing Carrier through a space charter agreement filed and effective under the Shipping Act of 1984. This means that the Commission is permitting a party to a transshipment agreement to utilize chartered space between the U.S. and the transshipment port but preventing the use of chartered space between the transshipment port and the foreign origin or destination port. The result is that the phrase "served by direct vessel call of both such carriers" has two meanings depending on whether the transshipment is in the export trade or the import trade and whether the Publishing Carrier is the Origin Carrier or the Destination Carrier.

If the Publishing Carrier is the Destination Carrier in the export trade then it must under this definition provide transportation on its own vessel from the transshipment port to the destination port. If the Publishing Carrier is the Origin Carrier in the export trade then it can provide its portion of transportation from the origin port to the transshipment port either on its own vessel or under a filed and effective space charter agreement in which it can use the vessel of another ocean common carrier.

Similarly, if the Publishing Carrier is the Origin Carrier in the import trade then it must provide transportation from the origin port to the transshipment port in its own vessel. But if the Publishing Carrier in the import trade is the Destination Carrier then it may use its own vessel or space on a vessel of another carrier obtained through a filed and effective space charter agreement.

There does not appear to be any logical basis for the Commission's proposal that the phrase "by direct vessel call" to mean use of chartered space on the U.S. leg but not use of chartered space on the non-U.S. leg of a transshipment move.

If the proposed regulation becomes effective the P&O Nedlloyd - FOML Non-Exclusive Transshipment Agreement would be required to terminate because the Publishing Carrier, FOML, does not operate its own vessel and it is not the Origin Carrier. Similarly, the P&O Nedlloyd - HSDG Non-Exclusive Transshipment Agreement will not be permitted because HSDG is not, with

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respect to that portion of the transshipment to/from the United States, operating its own vessel or obtaining space pursuant to a filed and effective space charter agreement.

As a result, these transshipment services would have to be discontinued. It is possible that FOML and P&O Nedlloyd could enter into a space charter agreement. For example, FOML could conceivably charter space from P&O Nedlloyd under a filed and effective agreement that would cover carriage to Busan. But if FOML used chartered space, then it would no longer need a transshipment agreement because it would be both the Origin and the Connecting Carrier, assuming it continued to use space chartered from FESCO from Busan to Russian Far East ports.

Which leads to the point that if the purpose of the rule change is to create greater “transparency,” (we would suggest that then better word would be “visibility”) then it will hardly be achieved by the proposed regulation. If the transshipment carrier does not operate its own vessel on the non-U.S. leg of the transshipment, but does operate its own vessel or uses space obtained through a filed or effective agreement, not only will there be no connecting carrier agreement, the FMC will have no information at all about how the cargo loaded by such carrier moves from the U.S. to its ultimate foreign destination.

The fact is that under the current approach to transshipment the Commission gets greater visibility than it has when there is no transshipment agreement. Under the current approach, the Publishing Carrier is required to tariff its transshipment arrangement. Under the proposed regulation, there would be no transshipment agreement because once a *bona fide* ocean common carrier moves cargo from the United States, the Commission is totally without information as to how that shipment gets to its ultimate destination. Similarly, when cargo arrives in the United States the Commission has no visibility of prior feeder services that might be involved from ports and points not served directly by vessels calling the U.S.

If “visibility” is the issue, then the Commission should understand that it has greater visibility under the current regulations as compared to its proposed regulation. We note that in a time where there are heightened concerns about security issues, an action that results ultimately in providing the Commission with less visibility does not represent sound policy.

Conclusions Concerning Transshipment

This discussion is somewhat complex, but the issue is simple. What we have shown is that the premises for the proposed change in regulation, *i.e.*, that the words “by direct vessel call” had a “traditional” meaning and that use of space charters inhibited FMC visibility of transshipment activities, are both without legal or factual support.

We have further shown that the proposed rule has significant internal inconsistencies including the fact that it would effectively define the phrase “by direct vessel call” in two different ways and that if implemented that a carrier

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using space under a filed and effective space charter would not need a transshipment agreement with another ocean common carrier.

We have also shown that under the rule the Commission would impose a more rigorous standard on "ocean common carriage" for shipments between a foreign transshipment port and a foreign origin/destination than it imposes on ocean common carriers calling at U.S. ports because the Commission's proposal would require the ocean common carrier to operate its own vessel between the foreign transshipment port and the foreign origin/destination and allow it to use filed and effective space charters between the U.S. and the transshipment port. We have also shown that this is not consistent with the Commission's rulemaking in Docket 99-10.

We have shown that the proposal would adversely impact on two P&O Nedlloyd non-exclusive transshipment agreements where P&O Nedlloyd is not the Publishing Carrier. We note that in the P&O Nedlloyd – FOML arrangement, FOML is able to offer service to ports in the Russian Far East which do not have sufficient cargo volumes to permit regular round voyage service to/from the United States. (FOML does serve these destinations directly when it is able to charter a vessel one way from the Pacific Northwest to the Russian Far East.) If this transshipment service is prohibited, then the shippers lose the service and have fewer choices to move their cargo.

With respect to the P&O Nedlloyd – HSDG non-exclusive transshipment service, HSDG is given the opportunity to compete for and carry cargo between Australia/New Zealand and Houston, TX. No direct service exists to/from Houston and Australia/New Zealand because the market cannot justify direct ship service.

One of the Commission's responses may be that it isn't stopping such moves, rather the carriers will not have an exemption and they will have to enter into and file a space charter agreement for the U.S. portion of the transshipment service. But once the carriers do that, then there is no need for transshipment and the visibility the Commission says it wants will be much less. Moreover, if the purpose of transshipment is to give access to markets lacking direct service that purpose should not be thwarted by burdening it with more regulatory oversight that is necessary or appropriate.

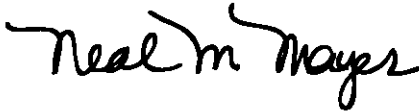
Based on the foregoing, P&O Nedlloyd believes it is clear that the proposed change in the definition of transshipment agreement should not be adopted.

Conclusion

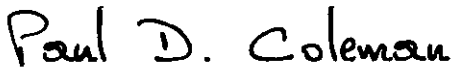
For all of the reasons expressed, P&O Nedlloyd respectfully urges the Commission (a) to clarify its proposed regulations concerning the filing of minutes of meetings or discussions by two or more members of an agreement and (b) to withdraw its proposed amendment of the definition of transshipment agreement.

Respectfully submitted,

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